

FIRST ENDORSEMENT

Acting Chief Prosecutor Matthew Kadushin, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, December 18, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23441 against Police Officer Frank Fiorenza, Tax Registry No. 957588. This case was conferenced on December 10, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Command Discipline Schedule A and the total forfeiture of five (5) vacation days, after Police Officer Fiorenza accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated June 2, 2021. Charges and Specifications are dismissed for plea purposes.

Matthew Kadushin

Matthew Kadushin
Acting Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

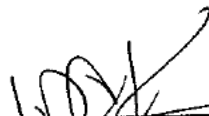
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-032015BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, FIORENZA	FIRST FRANK	M.I.	COMMAND 139
SHIELD NO. 18475	TAX REGISTRY NO. 957588	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Frank Fiorenza, on or about June 3, 2020, at approximately 2100 hours, while assigned to SRG 3 and on duty, in the vicinity of East 51st Street and 3rd Avenue, New York County, wrongfully used force, in that he punched § 87(2)(b) in the head and face without police necessity.	DISMISSED	A - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

1/14/25
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

2/10/25
DATE

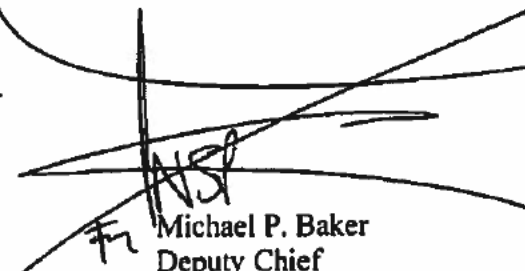
AMENDED FOURTH ENDORSEMENT

COMMANDING OFFICER, POLICE COMMISSIONER'S OFFICE to First Deputy Commissioner, April 28, 2025. Please note the Police Commissioner's **APPROVAL** of the Third Endorsement regarding Police Officer Frank Fiorenza, Tax No. 957588 (DADS No. 2021-23441 / PODS Case No. C-032015), in light of the facts and circumstances of CCRB Case No. 202004307.

The Police Commissioner **approves** of the negotiated ~~penalty to dismiss the charges~~ and specifications in this matter and to issue a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days.

This Amended Fourth Endorsement **supersedes** the prior Fourth Endorsement, dated February 10, 2025. Should there be any conflict between this Amended Fourth Endorsement and any other direction or memorandum, this Amended Fourth Endorsement shall control.

Forwarded for your necessary attention.


Michael P. Baker
Deputy Chief

MB/ms